

of the process of this Court served on them, they were committed.

In the last case touching Sir Walter Rawleighe, a bill was preferred, and the defendant answered that the plaintiff was five several times outlawed, and showed the records, [and craved] judgment if he [the plaintiff] should be answered. By the Court: No. And the Attorney cannot proceed on this bill on behalf of the Queen, but must prefer a new bill in his own name.

RAW-
LEIGH's
case
—
Outlawed
man plain-
tiff shall not
be answered

Cause of hearing, Finche, merchant and Controller of the Customs of London, plaintiff, Annate, Poell and Berrye, defendants, for conspiracy. Annate devised a letter in Finche's name, containing matter touching misprision of treason in 'coyninge doble pistolets,' and wrote this in Finche's name, being sealed; and he opened it and read it and took copies and published them; but the letter itself could not be viewed. The cause of this and the 'originalle' was malice, for Finche, being Controller of the Customs, would not suffer Annate's beer to pass 'transe-mare,' and therefore [Annate] devised this letter. And then when he had opened it and read it and published copies of the same, he took it to Sir Edward Hobby, a Justice of the Peace in Kent. It was 'vnhoneste' for him to open the letter, for if he doubted that it contained suspicion of treason, he ought to have carried it to the Justice of the Peace and delivered it to him. And this conspiracy was adjudged a great fault, and was sentenced by the whole Court: First, Annate, fine £200, to be nailed to the pillory, to have papers and imprisonment. For the coining of 'doble pistolets' is misprision of treason only, because it is a coin not allowed or stamped within this realm; otherwise if it were treason, he should lose his ears, and have perpetual imprisonment and should forfeit all his lands and goods for ever.

FINCHE
v.
ANNATE and
others
—
Conspiracy
for mis-
prision
of treason

Sentence
Fine, £200
pillory,
papers and
imprison-
ment

Poell was adjudged accessory and procurer of this, and was sentenced to a fine of £100, pillory and imprisonment. Berrye was acquitted.

[p. 62]
Poell, £100
fine, pillory
and im-
prisonment

1598
May 26
Controller
should not be
a merchant

It was said by the Court that the Controller ought not to be a merchant, but that this is punishable in another course [? Court].

Jurisdiction
of the Star
Chamber,
which is
great

Ruled by the Court, that if any Judge, Justice, officer or subject of the realm shall go beyond his bounds and limits, and misdemean himself in any manner, this Court has power and authority to examine and punish this ; and this is clear law without any doubt or question.

1598
June 28

In Camera Stellata, coram Consilio ibidem, Mercurij, 28 Junij, termino Trinitatis, Elizab. 40, An^o Doⁿⁱ 1598.¹

Perjury
referred to
common law
by reason of
verdicts

All the four causes appointed to be heard this day did not come to sentence. One for perjury against five with whom two verdicts have past, and therefore it was referred for trial at common law by indictment or action on the statute. And because one had confessed the perjury, he was to be sentenced, but the Court respited him until the trial at common law, the other cross bill depending on this.

Perjury
confessed
and not
sentenced

Cause dis-
missed for
insufficient
bill

Another was compounded ; and the last for insufficiency and uncertainty of the bill for forgery, in which no certain time was limited, [was dismissed].

*Dedimus
potestatem*
will not be
granted
before
contempt
purged

Ruled by the Lord Keeper, that when contempt is committed, no *dedimus potestatem* shall be granted before the contempt be purged and answered.

LITTLETON
P.
LITTLETON
In what case
defendants
may be used
as witnesses

Also ruled in the case of Gilberte Littleton, the father, plaintiff, and John Littleton, his son, defendant, that if a plaintiff complain against several defendants for divers particular and several offences, and not [against] any two of them for one and the same offence, [one] defendant may use the [other] defendants as witnesses in all matters

¹ Eight Councillors and Judges were present.

with which they are not charged by the plaintiff in his bill ;
and this is the rule of the Court.

Koke, the Queen's Attorney, was absent by reason of the death of his wife, Monday, 26 June, 1598 ;¹ and last term Justice Beamonde² and Serjeant Drewe³ died.

Wife of the
Queen's At-
torney died
Justice
Beamonde
and Serjeant
Drewe died

In Camera Stellata, coram Consilio ibidem, Vene-
ris, 30 Junij, termino Trinitatis, Elizab. 40, An^o Doⁿⁱ
1598.⁴

[p. 63]
1598
June 30

Information by the Queen's Serjeant and Solicitor against Benjamin Bulle, servant to Lady Paget, now wife to one S^r Edwarde Carewe, on confession by the party of slanderous words against the Lord Chief Justice of the Bench [Sir John Popham]. One Deere was apprehended by one Barnes, a Justice of the Peace in Middlesex, on suspicion of a robbery and murder, and was examined by him, and conducted to Newgate, and at the trial there, before both the Chief Justices, the Recorder and divers others, he was indicted, arraigned, and condemned ; and a woman named Marye Graye, having given evidence against the prisoner, the said Bulle many days after the trial approached her in Kent Street, and said to her, " Nowe, Graye, hathe god put into thy minde yet to saye the truthe concerninge Deere ; I durste sweare vpon all the bookes in the worlde that he coulde not be guyltye of the murder & Robberye ; if he were, he were woorthye of ten thousande deathes ; the matter shall be hearde againe before the Councelle wthin 4 dayes, & then you shall be all hearde ; god put into thy harte to saye the truthe ;" and many other words sounding to retract the evidence after the trial,

QUEEN'S
SERJEANT
v.
BULLE
and others
Slander

¹ Bridget, daughter and heir of John Paston, esq., of Huntingfield, co. Suffolk. Foss, vol. vi. p. 109. On p. 111, it is stated that she died on June 27 ; the text here says June 26.

² Francis Beaumont, Judge of the

Common Pleas, died April 22, 1598.

³ Edward Drew, of the Inner Temple, appointed Queen's Serjeant, 1596.

⁴ Eleven Councillors and Judges were present.

1598
June 30

[p. 64]

and to re-examine the matter before the Council. Which was adjudged by the whole Court to be a heinous offence against the Queen and her dignity, against the common justice of the land, and a slander of the same, and a great defamation of the Lord Chief Justice of England; and he [the Lord Chief Justice] was acquitted of this, and discharged, and delivered with very much and very great fame, commendation, credit, reputation and honour, and by all adjudged to be the most grave, wise and just judge that ever before had possessed his place; and as to the trial itself, Lord Anderson, the Recorder of London, Barnes and Crompton,¹ reported in the hearing of the Court, that it was the most just that could be; inasmuch as the prisoner had a copy of the indictment (which he could not have without the warrant of the Queen's Counsel) and of the examinations of the witnesses on both sides, as well to acquit him as to accuse him, and he was reprieved also for many days. And S^r Edwarde Carewe confessed (being present at the said trial), that if he himself had been of the Jury, he would, on the same evidence, have condemned him, which aggravates and increases the offence now in question. And it was said by the Lord Keeper that if the Chief Justice had been found guilty of this offence, in the first place, he would draw the vengeance of God on all the land for innocent blood, he had abused the Queen and her justice, for she is the body and we are the parts of the body, and it is her continual charge "Serue not mee in knowledge, wisdom or eloquence, but serue mee in the Feare of god, & doe Justice equallye to all my subiectes in the feare of god." And this would have been his punishment, as the precedent is 24 Edward III.: Sir William Thorpe, Chief Justice of England, was accused of taking bribes; whereupon the King directed a grave Commission of the most honourable lords of the land, who examined the matter, and found him guilty of taking of one £10, of

¹ Probably two barristers who had been present at the trial. Crompton's name is given by Foss in a list of

Counsel during Queen Elizabeth's reign. Barnes is not mentioned.

another £20, and in all not £60, and condemned him to death, and to forfeit all his goods and land for ever; and the cause of his judgment was 'for that he had falselye, iniustlye, & trayterouslye, & rebelliouslye, as muche as in him laye, offended the kinge's ma^{tie}, his lawes, his Crowne & dygnitye.'¹ And the Lord Keeper extolled greatly the Chief Justice of his own knowledge, but said, to avoid flattery, *cum sapiens laudatur in facie, flagellatur in corde*. And by the whole Court, Bulle was sentenced to have imprisonment, £200 fine, to be nailed with papers to the pillory at Westminster, again at Newgate, and again in Cheapside, and each term that he should remain in prison, to carry papers on the pillory at Westminster.

Sentence

In Camera Stellata, coram Consilio ibidem, Jovis, 6 Julij, Elizabeth. 40, An^o Doⁿⁱ [1598], le prochain jour apres Trinity terme.²

1598
July 6

This was a day for motions only, as is always the custom, and after the Queen's Counsel had moved, the Lord Keeper delivered an exhortation³ to the Judges and Justices by the commandment of the Queen, strictly delivered to him on the last Sabbath day at the Court. In the first place the Queen had an especial care and regard that all this Long Vacation the peace of her Church and of her land should be in all manner of ways maintained and preserved; and she charged the Judges here (who are trained in the knowledge of the laws, and touching whom the Queen has conceived a good opinion as to their justice and honesty, and therefore has advanced them to great dignity in justice, and which [Judges] are now to traverse all the realm in their several circuits for the common Justice of the realm), to have especial care and regard to preserve this according to the ancient laws of the realm, as they would render a strict and severe account thereof to

Motion day

Exhortation
to Judges
and Justice

[p. 65]

¹ See Foss's *Judges*, vol. iii. p. 527.

² Seven Councillors are named, *et tous les Justices d'ambideux bankes et les barons del exchequer*

et divers Justices del Peace.

³ Compare this with the other proclamations, pp. 19, 56, and *post*, p. 106, etc.

1598
July 6

her Majesty; and especially to regard the negligence of some Justices of the Peace, and the forwardness of others, and to punish the one and to recompense the other, and to make report of this to her Majesty; and since the peace of the Church, (thanks be to God,) is well preserved, but the disturbers of the peace of the land are 'sturdye Rouges & idle vagrant baggers,' these ought to have their punishment with great severity according to the purpose of the new statute.¹

Also, the Justices of the Peace are to depart out of London to their rural habitations, and there to observe hospitality and to guard the Justice and good governance of the land, as they would answer the contrary in great contempt of her Majesty, her crown and royal dignity, and receive severe punishment for their former contempts in the like manner, contrary to divers worthy proclamations, commandments and exhortations; and to avoid the name of 'baskette' Justices of the Peace,² or the receipt of greater things.

And as to the subsidies lately given by Parliament³ and now to be assessed, the Queen said nothing, or sparingly, but he [the Lord Keeper], of his own authority, charged the 'cessors' [assessors] to have especial care and regard to the just 'cessinge' of this, and not for any cause to charge the meaner sort of the people and discharge or disburden the better sort of the people, and with intent to gain freeholders in the county; for it is great deceit and a great sin to violate a promise to a friend, but to violate a promise and fidelity to the Queen herself and to God is more odious and detestable, for now indeed it is a certain debt due to her Majesty.

1598
Oct. 11

In Camera Stellata, coram consilio ibidem, Mercurij, 11 Octobris, Elizabethae 40, An^o Doⁿⁱ 1598.⁴

¹ 89 Eliz. cap. 4; An Act for punishment of Rogues, Vagabonds, and sturdy beggars.

² The basket Justices were so called because they allowed themselves to be bought over by presents

of game. Wynter, *Curiosities of Civilization*, p. 493.

³ 35 Eliz. cap. 12, 13.

⁴ Six Councillors and Judges were present.

The first cause for hearing, Frier, plaintiff, and others, defendants ; and when the cause was appointed to be heard, the parties, by petition delivered to the Lord Keeper, procured a reference of the matter to the ' Attornie generale,' to certify if it be fit for this Court ; and the parties then agreed ; and for this the plaintiff was sentenced to pay a fine to the Queen.

FRIER'S
case

Fine for com-
promising a
case

Another cause for hearing, Scrogs, plaintiff, and defendant, and divers others, for riot and maintenance ; but the bill contained forgery and perjury [also], which were not proved ; and for this the plaintiff was fined £10 for a false claim. And the Court was divided if it was riot or not, because there were no weapons nor blows, but only carrying hay with ' piclepronges,'² and no blows. But the Lord Keeper and others ruled this to be a riot, because they resisted a distress and ' piche le partye ouer the hedge,' and threatened him. And for this [they were] fined £20, notwithstanding that it was a small riot and not worthy of this Court ; but because the country would not find it,³ they sentenced it, and also because he would not replevy the beasts, which is the best trial, for all the title would appear by the pleading in the avowry.

[p. 66]
SCROGS,
pl.
Riot, main-
tenance, etc.
Plaintiff
fined

Sentence.

In Camera Stellata, coram Consilio ibidem, Mercurij, 16 Maij, Elizab. 41, An^o Doⁿⁱ 1599 ; adonque presente, Lo. Keeper, et Lo. Buckhurst adonque install Lo. Tresorer in le Chauncery et in l'eschequer, Lorde Admyralle adonque Erle de Nottingham, Lo. Chamberlin, Lo. Northe, L'archevesque de Canterberye, ambideux Ch. Justices, et S^r John Fortescue.

1599
May 16

Edmund Kidermaister,⁴ plaintiff, Maurice Hale, Richard Baum and divers others, women, defendants, ' for riots, routes & unlawfull assembyes & other misdemeanours.' For the

KIDER-
MAISTER
v.
HALE
and others
Riot

¹ Blank in MS.

² Pikel a pitchfork, a hay fork.
North. Halliwell.

³ Had a Grand Jury thrown out a bill relating to it?

⁴ Perhaps Ridermaister.

1599
May 16

first riot, each £10 and imprisonment ; for the second riot, each £20 and imprisonment ; for the third riot, each £30 and imprisonment ; and the women to be punished with the 'kuckinge stooles,' and the men to stand on the pillory 'bareheaded & in woman's apparrelle.'

1599
May 18

In Camera Stellata, coram Consilio ibidem, Veneris, 18 Maij, Elizab. 41, An^o Doⁿⁱ 1599 ; adonque presente Lo. Keeper, Lo. Tresorer, L'archeuesque de Canterberye, Lo. Northe, ambideux Ch. Justices, un esteant priuye Counseller,¹ et S^r John Fortescue.

BAILIFF OF
SOUTH-
WARKE and
others fined
for extor-
tion

The Bailiff of Southwarke and two of his men were (for extortion and other misdemeanours) fined, the Bailiff £100, his two men each £40, to stand on the pillory in three several places, and to have papers, and the two men to be whipped.

1599
June 13

In Camera Stellata, coram consilio ibidem, Mercurij, 13^o Junij, tr^{no} Trinitatis, Elizab. 41, An^o Doⁿⁱ 1599.²

ATT.-GEN.
v.
MISON
—
Contempt of
authority
and seditious
words
[p. 67]

Cause of hearing, by information of the Attorney, against one ³ Mison, for seditious words in contempt of Justices of the Peace and their authority on the orders as to Corn and the poorer people in the time of the great dearth, and for seditious words against the Council and the Queen (viz. :—" they are knaues, I will keepe none of there bastardes, my goodes are my nowne,⁴ they, nor the queene, nor the Councelle haue to doe with my goodes, I will doe what I liste wth them," etc.). He was fined £100, imprisonment, to wear papers, to confess his fault, and to be bound for his good abearing.

£100 fine,
imprison-
ment, for
good abear-
ing, papers
and con-
fession

ATT.-GEN.
v.
LUDLOWE
—
'depopu-
lacions'

Another cause of hearing by information of the Attorney against Ludlowe of Wiltshire, a gentleman of good account

¹ From this it appears that the Judges who sat from time to time in the Star Chamber were not necessarily Privy Counsellors.

² Eight Councillors and Judges were present.

³ Blank in MS.

⁴ I.e. mine own.

and great substance, for converting arable land to pasture, for the destruction of houses of husbandry and building cottages, to the 'depopulation,' contrary to the late statute of 39 Elizabeth.¹ He was acquitted by the sentence, because [his] offences were committed before 39 Elizabeth, and so were pardoned by the statute; and the building and erecting of cottages is not to be punished in this [Court],² but by the Justices of Assize.

Acquitted

In Camera Stellata, coram Consilio ibidem, Veneris, 22 Junij, Elizab. 41, An^o Doⁿⁱ 1599, termino Trinitat.³

1599
June 22

Cause of hearing between Rochester and Rochester for forgery of a will; in these words "I giue all my landes wheresoener &c.," he forged "whereso for euer"; it was lengthily debated for two entire days, and at last was adjourned to Michaelmas term because they wanted probation to prove forged deeds which were pretended by the bill to be forged.

ROCHESTER
v.
ROCHESTER
—
Forgery

Cause of hearing between Fleetwoode, a grave preacher, and Bankes of 'Lankashire,' in time past a Citizen of London; he was fined 500 marks, two of his servants for 'greeuous batterye' £40 apiece, and the others 40 marks, all [to suffer] imprisonment, and Bankes to be bound for his good behaviour, and to pay his servants' fines and £40 for the wounds to one of the plaintiff's servants.

FLEET-
WOODE
v.
BANKES
—
Riot

Fines,
500 marks,
£40,
40 marks,
£40, im-
prisonment,
good abear-
ing; master
to pay for
the servant

Another cause of hearing between Williams and others, plaintiffs, and Lhoyde, defendant, for extortions, and many other misdemeanours and grievous offences. He was fined 1000 marks, to stand on the pillory in three several places in Wales, imprisonment, and good abearing during his life. He sued divers processes in other names, and took money, and divers offences of a like nature.

WILLIAMS
and others
v.
LHOYDE
—
Extortions
and other
misdemeanours.
Imprison-
ment, pillory
in three
places, fine
1000 marks,
good abear-
ing during
life

¹ Chapter 2.

² 'Course' in MS.

³ Seven Councillors and Judges were present.

[p. 68]
1599
June 28

In Camera Stellata, coram consilio ibidem, Jovis, 28 Junij, le prochein jour puis Trinity terme, Elizab. 41, An^o Doⁿⁱ 1599; adonque presente l'archevesque, Lo. Keeper, Lo. Tresorer, S^r W^m Knowles, ambideux Ch. Justices et S^r John Fortescue et tous les Judges d'anglitterre.

Charge in
Trinity
term

The Lord Keeper delivered a speech given to him in charge by the sacred majesty of the Queen,¹ 'whoe in her princelye regarde of the peace & good of all her people, & in her royall Care of the generall Justice of all her lande, hathe now, as many other times, giuen specialle Charge for all gentlemen that now lodge in London or Westminster to repayre to there Cuntrye dwellinges, *et* to maintayne hospitalitie, *et* to people the realme, *et* to set the poore to worke: & for Justices of peace to remember there names, they are Conseruators *et* Justices, & there oathe: not to domineere & Countenaunce Cawses, *et* contemne those w^{ch} doe good & call them busybodyes & deprauie them: some doe nothing or euell, being grand reteyners, boulster causes, & in one shire of late at Easter Cessions, being orderlye sommoned & many Justices in the shire, not one there but the *Custos Rotulorum* onelye;' the Judges to advise for punishment of this, and the Judges to examine the service of each Justice and to give account for this, what 'felons, vagrand persons, alehowses,' &c., and to remove from the bench those that are drones and not bees, with disgrace and punishment; and the diligent and industrious to notify to the Queen to encourage them.

And the Attorney-general shall make a certificate of all gentlemen who now dwell in London or Westminster, and shall inform against them.

As to the taxing of the subsidy granted for the preservation of the realm, the Queen abhors all unjust taxations, and requires just and equal proportions from rich and poor.

¹ See pp. 19, 56, 101, and *post*.